

[9 EDW. 7.]

*Whittington Charity Scheme
Confirmation Act, 1909.*

[Ch. cxlviii.]



CHAPTER cxlviii.

An Act to confirm a Scheme of the Charity Commissioners for the management of the Charity of Sir Richard Whittington under the management of the Mercers' Company of the City of London. A.D. 1909.

[20th October 1909.]

WHEREAS the Charity Commissioners for England and Wales in their report to His Majesty of their proceedings during the year one thousand nine hundred and eight have reported that they have approved and certified a scheme for the application of the Charity of Sir Richard Whittington under the management of the Mercers' Company of the City of London and regulated by trusts confirmed by King Henry VI. on petition in Parliament in the tenth year of his reign :

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The said scheme is hereby confirmed Provided always that nothing in this Act or in the said scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exerciseable or hereafter to become exerciseable by the High Court of Justice and the Charity Commissioners. Confirmation of scheme.

2. This Act may be cited as the Whittington Charity Scheme Confirmation Act 1909. Short title.

A.D. 1909.

SCHEDULE.*Scheme for the Application or Management of the
Charity of Sir Richard Whittington under the management of
the Mercers' Company of the City of London.*Administra-
tion of
Charity.

1. The above-mentioned Charity and the endowments thereof specified in the Schedule hereto and all other the endowments (if any) of the said Charity shall be administered and managed by the Mercers' Company of the City of London the Trustees of the Charity (acting in accordance with the ordinary practice of the Company by their Court of Assistants or otherwise) subject to and in conformity with the provisions of this Scheme.

Investment
of cash.

2. All sums of cash now or at any time belonging to the Charity and in the opinion of the Trustees not needed for immediate working purposes shall (unless otherwise ordered) as soon as possible be invested under the authority of a further Order of the Charity Commissioners in the name of "The Official Trustees of Charitable Funds."

ALMSHOUSE.

Almshouse.

3. The Almshouse buildings belonging to the Charity and the property heretofore occupied therewith shall be appropriated and used for the residence and use of the Almspeople of the Charity in conformity with the provisions of this Scheme provided that the Trustees may from time to time assign any suitable portions of the said buildings to be the residences of the Tutor Matron Nurse Gardener or other official.

Absence from
Almshouse.

4. No Almsperson shall be absent from the Almshouse for a period exceeding 24 hours without the consent in writing of the Trustees or their authorised representative but in special cases such consent may for any sufficient reason be given retrospectively after the absence has occurred.

Rooms not to
be let.

5. No Almsperson shall be permitted to let or part with the possession of the room or rooms allotted to her or except with the special permission of the Trustees to suffer any stranger to share the occupation of the same or of any part thereof.

MANAGEMENT AND LETTING.Allotments
Extension
Act 1882.

6. The Trustees may set apart and let in allotments in the manner prescribed by and subject to the provisions of the Allotments Extension Act 1882 any portion of the land belonging to the Charity other than buildings and the appurtenances of buildings.

7. Subject as aforesaid all the property of the Charity not required to be retained or occupied for the purposes thereof shall be let and otherwise managed by the Trustees. The Trustees shall before letting any property give notice of the intention to let the same by affixing such notice on the premises to be let or by otherwise publishing the same in such mode as they may deem most effectual. The Trustees shall not create any tenancy in reversion after more than three years of any existing term or for more than 21 years certain or for less than the improved annual value at rackrent without the sanction of the Charity Commissioners or a competent Court.

A.D. 1909.
—
Management
and letting of
property.

8. The Trustees shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof and every lease shall contain covenants on the part of the lessee for the payment of rent and the proper cultivation of the land and all other usual and proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

Leases.

9. The Trustees shall keep in repair and insure against fire all the buildings of the Charity not required to be kept in repair and insured by the lessees or tenants thereof.

Repair and
insurance.

OFFICERS AND SERVANTS.

10. The Trustees may appoint at salaries to be approved by the Charity Commissioners a Tutor or Chaplain an Organist a Matron a Nurse and any other necessary officers or servants but so that in every case the person appointed shall be dismissible at the pleasure of the Trustees.

Appointment
of officers.

11. The Tutor or Chaplain shall be a Clergyman of the Church of England in Priest's Orders and shall perform such spiritual offices in connexion with the Almspeople of the Charity as may reasonably be required of him by the Trustees. The other officers or servants shall perform such duties in connexion with the Almspeople and the Alms-house buildings or the property occupied therewith as may reasonably be required of them by the Trustees.

As to Tutor.

As to other
officers.

APPLICATION OF INCOME.

12. The cost of repairs and insurance and all other charges and outgoings payable in respect of the property of the Charity and all the proper costs charges and expenses of and incidental to the administration and management of the Charity including the salaries of the officers and servants shall be first defrayed by the Trustees out of the income of the Charity.

Expenses of
management.

13. The net yearly income of the Charity remaining after the payments aforesaid shall be applied by the Trustees in the manner and to the objects herein-after prescribed.

Application
of net yearly
income.

A.D. 1909.

Almspeople.

Almspeople.

14. The Trustees shall in the first place apply a sufficient part of the said net yearly income in the payment of the stipends of the Almspeople of the Charity in conformity with the provisions of this Scheme.

Number and qualifications of Almspeople.

15. The full number of Almspeople shall be 28. They shall be poor single women or widows above the age of 55 years of good character not in receipt of Poor-law relief other than medical relief and not in possession of a yearly income exceeding 20*l.* from real estate or 40*l.* from any source whatever beyond their stipends from the Charity.

Stipends of Almspeople.

16. There shall be paid to each Almsperson out of the income of the Charity by weekly or other periodical payments as the Trustees from time to time think fit such a stipend being at the rate of not more than 40*l.* a year as the Trustees may from time to time fix having regard to the needs and circumstances of the respective Almspeople and to the income and other circumstances of the Charity.

Pensions and Grants.

As to one-third of residue.

17. The Trustees shall apply one-third part of the residue of the said net yearly income in the payment of pensions and grants of such amount in each case as the Trustees in their discretion think proper to poor and indigent men and women of the said Company not in receipt of Poor-law relief other than medical relief. The expression "indigent men and women of the said Company" shall in this clause mean and include indigent members of the Mercers' Company and indigent members of the families of members of the Mercers' Company.

As to remaining two-thirds.

18. The Trustees shall apply the remaining two-third parts of the said residue in the payment of pensions of an amount not exceeding 40*l.* a year in each case to deserving and necessitous persons who have not during the period of one year next preceding the time of appointment received Poor-law relief other than medical relief and so that of the pensions payable under this clause one half in number shall be paid to persons being otherwise qualified as last aforesaid who have resided for not less than two years next preceding the time of their appointment in the Metropolitan Police Area.

Provisions as to Almspeople and Pensioners.

Saving.

19. Appointments of Almspeople and Pensioners under this Scheme shall be made without prejudice to the interests of the existing Almspeople and Pensioners of the Charity.

Power to Trustees to apply stipends and

20. The Trustees instead of paying the whole amount of the stipend to any Almsperson or Pensioner in money may from time to time expend the whole or any portion thereof for his or her benefit as they think fit

A.D. 1909.

The Trustees shall also be at liberty to expend a sum not exceeding 10*l.* in any case in defraying the cost of burial of any Almsperson or Pensioner.

to pay cost of
burial.

21. At least once in every year a notice specifying the qualifications required from candidates for appointment as Almspeople or Pensioners and the proper mode of applying for appointment shall be sufficiently published by advertisement or otherwise as the Trustees think fit.

Notices.

22. Every appointment of an Almsperson or a Pensioner shall be made by the Trustees as soon as conveniently may be after the occurrence of a vacancy.

Appointments
of Almspeople
and Pensioners.

23. The Almspeople and Pensioners shall be selected after full investigation of the character and circumstances of the applicants and inquiry whether they have shown reasonable providence and whether and to what extent they may reasonably expect assistance from relations or others.

Selection of
Almspeople
and Pen-
sioners and
payment of
Pensions.

The pensions shall be paid subject to such reasonable regulations for ascertaining the identity and good conduct of the Pensioners and their continued possession of the required qualifications as the Trustees from time to time prescribe.

For the purpose of this clause the Trustees may avail themselves of the agency of any Charity Organisation Society or other like agency.

24. The Trustees shall provide and keep a book in which shall be entered the name age and description of every person appointed to be an Almsperson or a Pensioner the date of every appointment and the date and occasion of every vacancy.

Register.

25.—(1) The grant of each pension shall be made during the pleasure of the Trustees.

Removal of
Almspeople
and Pen-
sioners.

(2) Any Almsperson or Pensioner who receives Poor-law relief other than medical relief shall be removed from being an Almsperson or a Pensioner.

(3) If in the opinion of the Trustees any Almsperson or Pensioner is guilty of insobriety insubordination breach of regulations or immoral or improper conduct or is disqualified for retaining his or her appointment by having become entitled to a sufficient income from sources other than the Charity or on account of mental disease (in the case of an Almsperson) or from any other cause or if in any case it appears that any Almsperson or Pensioner has been appointed without having the required qualifications the Trustees upon proof thereof to their satisfaction may remove the Almsperson or Pensioner.

(4) Upon the removal of any Almsperson or of any officer or servant having a residence in the said buildings the Trustees shall take possession of the tenement or room occupied by him or her and upon

A.D. 1909. the removal of any Almsperson or Pensioner the Trustees may proceed to appoint another Almsperson or Pensioner in his or her place.

(5) In any case of such misconduct as aforesaid the Trustees may suspend the payment of the stipend to the Almsperson or Pensioner either wholly or in part during such time as they think fit.

(6) Any Almsperson removed on account of mental disease and any Pensioner removed on account of receiving Poor-law relief while being detained under lawful authority as a person suffering from mental disease may on recovery be re-appointed without previous notice being given of the vacancy to be filled up and need not possess the qualifications as to residence and previous non-receipt of Poor-law relief.

Regulations. 26. The Trustees may from time to time prescribe such reasonable regulations as they consider expedient for the government of the Almspeople and Pensioners provided that the same shall not be at variance or inconsistent with any of the provisions of this Scheme and by such regulations may provide that the Almspeople shall render such assistance to each other and to the officers and servants of the Charity as is within their power.

GENERAL PROVISIONS.

Trustees not to be personally interested.

27. No Trustee shall take or hold any interest in any property belonging to the Charity otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration or be interested in the supply of work or goods at the cost of the Charity.

Charity not to relieve rates.

28. The funds or income of the Charity shall not in any case be applied in aid of any rates for the relief of the poor in any Parish or place.

Minutes and accounts.

29. Minutes shall be kept and books of account shall be provided by the Trustees. All proper accounts in relation to the Charity shall in each year be made out and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners and published in conformity with the provisions of the Charitable Trusts Acts.

General power to make regulations.

30. Within the limits prescribed by this Scheme the Trustees shall have full power from time to time to make regulations for the management of the Charity and for the conduct of their business including the summoning of meetings the deposit of money at a proper bank and the custody of documents.

Alteration of Scheme.

31. The Charity Commissioners may upon the application of the Trustees from time to time in the exercise of their ordinary jurisdiction establish Schemes for the alteration of any provisions of this Scheme as if those provisions had been made by the founder in the case of a Charity having a founder.

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Whittington Charity Scheme
Confirmation Act, 1909.

[Ch. cxlviii.]

32. Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about to be done under this Scheme shall be determined conclusively by the Charity Commissioners upon application made to them for the purpose by the Trustees.

A.D. 1909.

Questions
under
Scheme.

SCHEDULE OF PROPERTY.

Description.	Extent or Amount.	Tenant, Person liable, or Persons in whose Names invested.	Gross Yearly Income.
<i>Real Estate.</i>	£ s. d.		£ s. d.
The following properties in the City of London:—			
Gresham Buildings, Basing- hall Street.	—	Executors of J. Perry	2,500 0 0
Nos. 9, 10, and 11, Basinghall Street.	—	W. H. Dunn	196 0 0
"The Bell" public house, Basinghall Street.	—	Flower and Sons, Limited	80 0 0
Nos. 48 and 49, Coleman Street.	—	Charles Morrison	2,300 0 0
Nos. 17, 18, 19, and 20, King's Arms Yard.	—	Joseph Ullman	300 0 0
No. 20, College Hill	—	Executors of C. N. Wilde	0 1 0
Do. Easement (windows).	—	Do. do.	0 1 0
Do. do. (vent pipe).	—		
Part of No. 34 and No. 36, Gresham Street.	—	Jones, Lang, and Company	1,008 0 0
Nos. 18 and 19, Lawrence Lane.	—		
Nos. 26, 28, and 30, Gresham Street.	—	J. S. Brown and Sons	1,800 0 0
Nos. 8, 9, and 10, Mumford Court.	—	Abel Morrall and Com- pany, Limited.	70 0 0
Nos. 20 and 22, Gresham Street.	—	Hughes and Company	69 5 0
No. 13, King's Arms Yard	—	C. J. Parker	330 0 0
Nos. 13 and 14, Milk Street	—	H. C. Knowles	20 0 0
No. 24, Gresham Street, and premises in Mumford Court.	—	Sidney Mart	425 12 0
Strip of land in rear of Nos. 11 and 12, Milk Street.	—	George Mart	611 1 0
No. 2, Mitre Court	—	J. Layton	150 0 0
No. 3, do.	—	The British Bank of South America.	75 10 0
No. 4A, Moorgate Street	—	T. Harrison and Company	400 0 0
No. 2A, do.	—	Houghton Dickson	225 0 0
Nos. 1 and 2, Mumford Court	—	E. Hornsby and Sons	200 0 0
Nos. 3 and 4, do.	—	Joseph Harwood	35 0 0
Nos. 1 and 3, Old Swan Lane	—	In hand.	—
No. 5, do.	—	Tennant, Sons, and Com- pany.	450 0 0
No. 7, do.	—		
Nos. 9, 11, and 13, do.	—		

A.D. 1909.

Description.	Extent or Amount.	Tenant, Person liable, or Persons in whose Names invested.	Gross Yearly Income.
	£ s. d.		£ s. d.
Nos. 1 and 2, Tokenhouse Yard Buildings.	—	H. Dove - - -	3,400 0 0
No. 3, Tokenhouse Yard Buildings.	—	Do. - - -	1,790 0 0
No. 4, do. do. -	—	Do. - - -	1,958 0 0
No. 13, Trinity Square -	}	S. Walker and Son -	290 0 0
No. 14, do -		George Harker and Com- pany.	100 0 0
No. 101, Upper Thames Street		Norton and Langridge -	306 16 0
No. 9, Wood Street -	—	M. Salaman and Company	372 0 0
No. 8, Wood Street, and pre- mises in Mitre Court.	—	F. I. Lyons and A. L. Lyons.	66 13 4
No. 34, Milk Street (one sixth interest in).	—		(Total rent 400 0 0)
The following properties at Highgate:—			
Nos. 1, 2, and 3, Mercer's Terrace, Archway Road.	—	H. F. Stanley and A. O. L. Schneider.	15 0 0
Do. do. (Ease- ment in respect of opening and window).	—	J. Fraser - - -	0 1 0
Messuage in Thomas Street -	—	I. C. Hill - - -	40 0 0
Do. do. -	—	J. Fraser - - -	15 0 0
The Almshouses belonging to the Charity, with their sites and appurtenances.	—	In hand.	—
<i>Personal Estate.</i>			
Metropolitan Water (B) Stock 3 per cent.	3,881 19 10	"The Official Trustees of Charitable Funds."	116 9 2
Do. do. -	3,054 11 3	High Court of Justice (Chancery Division).	91 12 8
Do. do. -	1,891 5 6	Do. do. -	56 14 8
Do. do. -	11,166 8 8	Do. do. -	334 19 10
Do. do. -	9,979 17 9	Do. do. -	299 7 10
Do. do. -	20,892 1 10	Do. do. -	626 15 2
Local Loans 3 per cent. Stock -	394 11 3	Mercers' Company -	11 16 8
Annuities, being the gifts of:—			
Alderman Haydon -	—	Do. - - -	3 6 8
Richard Barnes -	—	Do. - - -	2 12 0
Samuel Goldsmith -	—	Do. - - -	1 0 0
Alderman Elkin -	—	Do. - - -	5 4 0
Alderman Barclay -	—	Do. - - -	10 8 0
Alderman Baskerville -	—	Do. - - -	2 10 0
Sir John Allen -	—	Do. - - -	0 4 8

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